

24NNCV03377 24NNCV03377

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-07-22

Motion: MOTION TO TAX COSTS

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ALH%2C3%2C07%2F22%2F2026

Source SHA-256: e976d06e0d204e15e392c8434681cb9866fd537c8946985993410f0a626ad655

Case Number: 24NNCV03377 Hearing Date: July 22, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

KY JUNG
NAM, et al.,

Plaintiff(s),

vs.

GENERAL
MOTORS LLC, et al.,

Defendant(s).

)

)

)

)

)

)

)

)

)

)

)

CASE NO.: 24NNCV03377

[TENTATIVE]

ORDER RE: MOTION TO TAX COSTS

Dept.

3

8:30

a.m.

July 22,

2026

)

Plaintiffs Ky Jung Nam and NKJ

Investment LLC (collectively, "Plaintiffs") seek \$1,453.48 in costs as the prevailing party pursuant to Civil Code section 1794(d). Under California Code of Civil Procedure § 1794(d), "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action"

On June 10, 2026, Defendant filed this

motion to tax \$617.30 in costs. These costs include \$113.25 in service of process fees related to Camino Real Chevrolet and \$504.05 in electronic filing fees. Defendant argues that the cost to serve Camino Real Chevrolet is unreasonable because it is nearly three times the cost of that to serve Defendant. The fact that substituted service on Camino Real Chevrolet cost \$113.25 while personal service of the summons and complaint on Defendant only cost \$41.18 is not, by itself, evidence that the expense was not reasonably incurred. Rather, the expense was reasonably incurred because Camino Real Chevrolet was a named defendant and had to be served. Furthermore, Defendant provides no evidence of comparable costs to conduct substituted service on an entity and the increased cost is reasonable given the additional requirements for effecting substituted service. Therefore, the motion to tax costs is DENIED with respect to the cost to serve Camino Real Chevrolet.

Defendant also argues that Plaintiffs must identify the filings for which electronic filing fees are requested because there is no other way to tell whether those costs were reasonably incurred. On July 9, 2026, Plaintiffs filed an opposition brief with a table itemizing the documents that were filed and the costs incurred to electronically file and serve them. The documents consist of proofs of service, case management statements and status reports, trial documents, and oppositions to Defendant's motions in limine. While this list of documents seems, on its face, proper, Plaintiffs produce no declaration or any actual evidence. Accordingly, the motion to tax costs is GRANTED with respect to the electronic filing fees of \$504.05.

Based on the foregoing, Plaintiffs' costs are reduced from \$1453.48 to \$949.43.

Dated
this 22nd
day of July 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided

on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.